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Provision of September 12, 2024
Register of provisions
n. 545 of September 12, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN the meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, on the protection
of natural persons with regard to the processing of
personal data, as well as the free movement of such data,
and repealing Directive 95/46/EC, "General Data Protection
Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003,
containing the "Code regarding the protection of personal data,
containing provisions for the adaptation of the
national legislation to Regulation (EU) 2016/679 of the
European Parliament and of the Council of April 27, 2016,
on the protection of natural persons with regard to the
processing of personal data, as well as the free movement
of such data, and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures of external relevance,
aimed at carrying out the tasks and
exercising the powers assigned to the Guarantor for the
protection of personal data, approved by
resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the
Secretary General pursuant to Article 15 of the
Guarantor Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTER Attorney Guido Scorza;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Mr. XX, a military member
of the Carabinieri Corps, has reported certain
alleged violations of the regulations on
the protection of personal data by the Order

of Nursing Professions (OPI) of Trieste (hereinafter, the "Order").

In particular, the complainant stated that he learned that, on XX, at the Legion Command where he serves (hereinafter, the "Legion Command"), a certified email message was received, containing an attachment, with the subject "Report of conduct [name and surname of the complainant]," signed by the President of the Order, the President of the OPI of Pordenone (also in the capacity of President of the Coordination of OPIs of Friuli Venezia Giulia – hereinafter, the "Coordination") and by the Presidents of the OPIs of Udine and Gorizia. With this note, the Legion Command was informed of the "series of requests for general civic access" and the "multiple reports" that the complainant and his wife had made to the aforementioned OPIs, as well as information regarding the complainant's wife (profession; registration with the Order) and the evaluations expressed by such OPIs regarding the considered inappropriateness of such requests and reports, deemed "largely unfounded and that even from the perspective of the ordinary citizen, have no purpose or utility," having as "the sole purpose [...] that of having requested a great commitment from the administrative offices, the staff, the institutional roles of the Entities and the consultants and professionals who assist them, diverting precious time and also substantial economic resources from the ordinary activities of the Orders." The OPIs therefore "considered it appropriate to submit to the [Commander of the Legion Command] the conduct of [the complainant], [in service at] the Carabinieri Corps, which always and in any case represents, to avoid creating an obstacle to the institutional activity of the aforementioned professional Orders for mere personal interests [...]", asking him "to take into consideration what [...] has been stated, solely for the purpose of improving relations between State Entities, which should collaborate with each other for the benefit of the citizen and the institutions they represent." According to the complainant, the communication of the aforementioned personal data to the Legion Command, as well as the exchange of such data between the various OPIs belonging to the Coordination, including the Order, would have occurred in the absence of a legal basis. Furthermore, the complainant lamented the circumstance that the Order and the other OPIs that are part of the Coordination would have unlawfully processed the personal data related to his profession and employer, which had never been disclosed by the complainant to them. The complainant also complained of not having received from the Order, at the time of submitting the aforementioned requests for civic access and

reports, any information regarding the processing of his personal data, including regarding the possibility of exercising the rights referred to in Articles 15-22 of the Regulation.

An additional reason for the complaint concerns the circumstance that the Order did not provide a response to a request for the exercise of the right of access to personal data, made by the complainant to the Order pursuant to Articles 12 and 15 of the Regulation.

2. The investigative activity.

In response to two requests for information

from the Authority (see notes prot. n. XX of XX and n. XX of

XX), the Order, in a note dated XX, through its lawyer, declared, in particular, that:

“[...] the [OPI] are non-economic public entities of very small size: the Order [...] consists of one permanent part-time unit category B level 2 (30 hours per week). There are no managerial figures and most of the duties are performed by the President, the Treasurer, and the Secretary, who, in addition to carrying out their profession, provide their services free of charge”;

“[...] the claimant has sent numerous requests for access [to information] to the Order”;

“the management of such a quantity of requests, appeals, complaints, warnings, and reports from the [claimant] has historically overlapped not only with the normal activities of the Order (registrations, terminations, changes, certifications, professional training, disciplinary proceedings, etc.), but, above all, with the management of the enormous workload resulting from the pandemic crisis and the administrative proceedings for the suspension of unvaccinated nurses, pursuant to DL 44/21”;

“[...] in this context, the management of the claims of the [claimant] – regardless of their legitimacy – seriously jeopardized the operational capacity of the Order in the Friuli Venezia Giulia Region, thus compromising the exercise of a public power. There were concrete and serious legal risks for the Presidents, including crimes such as omissions of official acts”;

“on these premises, the [four] Presidents of the regional Orders, institutionally gathered in the Coordination [...], found themselves compelled by the urgent necessity to find a 'joint' solution to normalize relations with the [claimant], agreeing to activate every possible avenue to find an amicable compromise solution and thus allow the concentration of workforce and resources of the entity on the pressing institutional and ordination activities, at least until the end of the pandemic emergency”;

“all of the above outlines both a legitimate interest of the holder to process the personal data of the [claimant], outside the execution of ordination tasks typical of public authorities, in the public interest of ensuring the proper functioning of the entity pursuant to Article 97 of the Constitution”;

“it is finally specified that the involvement of the Regional Coordinations derives precisely from the fact that they are bodies responsible for managing 'common issues' for the [OPI] of a given territory (Region), by virtue of a Regulation adopted by the National Federation in 2016, which provides for their establishment and regulates their operations [...], published on the institutional website <https://www.fnopi.it/amministrazione-trasparente/disposizioni generali/atti-general/>”;

“in relation to the additional personal data of the claimant and, in particular, to the affiliation with the Carabinieri Corps, it is highlighted that in compliance with the principles of lawfulness, fairness, and transparency, the Presidents, in the perspective described above, searched the web for information about the claimant with a simple search on [a search engine]”;

“the claimant's affiliation with the Carabinieri Corps is a public fact, resulting from documents, including official ones, that can be found and consulted by anyone online, with a simple search by name and without entering any other identifying data, including those provided by the claimant himself”;

“[...] the request addressed to the [Legion Command] had the sole purpose of informing the superiors of the conduct of the [claimant], so that they could jointly intervene by raising awareness about the inappropriateness of his initiatives, thus avoiding formal steps against him”;

“[...] this is also in light of the Code of Conduct for employees of the Ministry of Defense, from which the Carabinieri Corps depends [...]”;

“no personal data was communicated to the Command that it did not already know”;

“other access proceedings pursuant to Legislative Decree 33/2013 by the [claimant] to other public authorities are, moreover, subject to publication by the recipient entities and are available online as public data, with the identification of the requester”;

“the information on the processing of personal data is published on the institutional website of the Order at the following page <https://www.opitrieste.it/informativa-opi-trieste/> [...] Further privacy information, specific to the processing of data related to requests pursuant to Article 15 et seq. GDPR, was provided to the requester on XX together with the response sent via PEC [...]”;

“the integration of the complaint would refer to the alleged failure to respond to a 'request for clarification' dated XX following the previous request of the [claimant] pursuant to Article 15 et seq. GDPR dated XX, which the Order had duly responded to within the terms on XX and of which even the same [claimant] - in the same request for clarification - acknowledges. Therefore, the matter of which he complains about the lack of response is nothing more than a superfluous reiteration of the previous [request], which had already received a comprehensive response in the manner and within the terms provided by the regulations.”

In a note dated XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Order, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having the Order:

- processed the personal data relating to the profession and the employer of the claimant in a manner not

in accordance with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

- communicated the personal data of the complainant and their spouse to other OPI in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

- communicated to the Command Legion the personal data of the complainant and their spouse, contained in the joint note of the Presidents of the OPI (prot. no. XX of XX), in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code;

- failed to enter into a co-controller agreement for the processing with the other OPI, in violation of Article 26, paragraphs 1 and 2, of the Regulation;

- failed to provide the complainant and their spouse with information on the processing of personal data, in a manner not compliant with the principle of "lawfulness, fairness, and transparency" and in violation of Articles 5, paragraph 1, letter a), 13 (in relation to data acquired directly from the data subjects) and 14 (in relation to data not acquired directly from the data subjects) of the Regulation;

- failed to inform the complainant, without delay, and no later than one month from the receipt of the request, of the reasons for non-compliance with their request for access to personal data and of the possibility to lodge a complaint with a supervisory authority and to seek judicial remedy, in violation of Article 12, paragraph 4, of the Regulation.

With the same note, the aforementioned data controller was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note dated XX, the Order, through its lawyer, submitted a defensive memorandum, stating, in particular, that:

“the seriousness of the violation does not appear to be high, as the processing concerns public data or,

in any case, data such that their processing or communication to the complainant's employer could not cause harm in itself”;

“Article 748, paragraph 5, of DPR 90/2010 (consolidated regulatory text of military legislation)” provides that “the military must also promptly inform their command or entity: a) of any change in civil status and family” and, therefore, “the recipient of the communication was already informed of the civil status of the interested party”;

“the OPI acted solely to ensure its operability, at a time of particular difficulty arising from the burdens associated with monitoring the vaccination obligation imposed on members. There was no intention to cause any harm to the complainant or their spouse [...]”;

“the data processed do not fall into the category of 'special' data, nor do they pertain to criminal records”.

During the hearing, requested pursuant to Article 166, paragraph 6, of the Code and held on XX (see verbatim prot. no. XX of XX), the Order stated, in particular, that:

“the incident subject to the complaint occurred in the difficult context of the SARS-CoV-2 epidemic, in which the Order, which is a non-economic public entity with approximately 2,200 members, equipped with a limited organizational structure and limited economic resources, had to face numerous and burdensome obligations provided for by emergency legislation, having to make delicate decisions in very rapid times, in a regulatory framework characterized by high legal complexity. In particular, the Order had to process numerous procedures aimed at verifying the possession of the vaccination requirement by professionals registered under Article 4 of Decree-Law 44/2021”;

“in this very difficult context, also characterized by high pressure from members who did not agree with the choices made by the legislator regarding vaccination obligations, the Order had to face the burdensome administrative obligations provided for by emergency legislation, relying on only one administrative employee of category B, who could not objectively handle all the numerous procedures pending at the Order, including the requests submitted by the complainant. The organizational difficulties were further exacerbated by structural problems affecting the Order's headquarters”;

“the note sent to the [Command Legion] where the complainant was performing their work must be framed in this context, as an attempt to stem the numerous requests submitted by the complainant, which risked further paralyzing administrative action”.

3. Outcome of the investigative activity.

3.1 The processing of personal data relating to the profession and employer of the complainant.

Public entities, in accordance with the principle of "lawfulness, fairness, and transparency" (Article 5, paragraph 1, letter a), of the Regulation), may, as a rule, process personal data if the processing is necessary to comply with a legal obligation or for the performance of a task carried out in the public interest or related to the exercise of public powers (see Articles 6, paragraph 1, letters c) and e), and paragraphs 2 and 3 of the Regulation, as well as Article 2-ter of the Code).

In this case, the Order acquired information relating to the profession performed by the complainant by querying a search engine and consulting publicly available documents on the Internet. Such online research operations, consultation, and registration of information related to the profession and employer of the complainant constitute processing of personal data (see art. 4, nos. 1 and 2 of the Regulation), which, however, cannot be considered necessary for the purposes of the administrative procedures related to the requests for civic access and the reports submitted by the complainant to the Order, regardless of whether such information was available on the Internet due to its publication by the interested party or by third parties for other purposes not related to the institutional functions of the Order (see provisions of November 24, 2022, no. 385, web doc no. 9839018; March 10, 2022, no. 82, web doc no. 9761383; January 13, 2022, no. 7, web doc no. 9745807; July 2, 2020, no. 118, web doc no. 9440025; February 13, 2020, no. 35, web doc no. 9285411).

The Order has, therefore, processed the personal data related to the profession and employer of the complainant in a manner that is not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code.

3.2 The communication of personal data to other OPI in Friuli-Venezia Giulia.

From the documentation on file and the statements made during the investigation, it is also established that the Order shared with other OPIs in Friuli-Venezia Giulia the information related to the requests for civic access and the reports submitted by the complainant and their spouse, carrying out a processing of personal data that cannot be considered necessary for the purposes of the procedures initiated in relation to the aforementioned requests for access and reports.

In this regard, it should be noted, with considerations that apply to the overall processing of personal data subject to complaint, that the defensive thesis of the Order cannot be accepted, according to which the “access procedures pursuant to Legislative Decree 33/2013 [...] are subject to publication by the recipient entities and are available online as public data, with the identification of the requester.” As clarified by the National Anti-Corruption Authority (ANAC) in its Guidelines adopted in agreement with the Guarantor, the “register [of access requests, where established,] contains the list of requests with the subject and date and the related outcome with the date of the decision and is published, obscuring any personal data that may be present [...]” (paragraph 9 of Determination no. 1309 of 28/12/2016 containing the “Guidelines providing operational indications for the definition of exclusions and limits to civic access pursuant to art. 5, paragraph 2 of Legislative Decree 33/2013,” in G.U. no. 7 of 10/1/2017 and at <https://www.anticorruzione.it/-/determinazione-n.-1309-del-28/12/2016-rif.-1>; see also paragraph 8.2.b. of the Circular of the Minister for Public Administration no. 1 of 2019, containing “Implementation of the rules on generalized civic access (so-called FOIA),” at http://www.funzionepubblica.gov.it/sites/funzionepubblica.gov.it/files/Circolare_FOIA_n_1_2019.pdf).

The Order has, therefore, communicated the personal data of the complainant and their spouse to the aforementioned OPIs in a manner that is not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of a legal basis, in violation of articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as 2-ter of the Code.

3.3 The communication to the Command Legion of the personal data of the complainant and their spouse contained in the joint note of the Presidents of the OPIs of Friuli Venezia Giulia.

With note prot. no. XX of XX, signed by the President of the Order, the President of the OPI of Pordenone (also in the capacity of President of the Coordination) and the Presidents of the OPIs of Gorizia and Udine, and addressed to the Command Legion, where the complainant performs their work activity, the Order communicated to the Command Legion some personal data of the complainant, namely information related to the requests for document access and the reports submitted by the complainant to the aforementioned OPIs and other public entities, the evaluations of the OPIs regarding the appropriateness of such requests and reports, and the overall conduct of the complainant, as well as information related to the marital relationship between the complainant and a professional registered with the Order.

With the note in question, personal data relating to the complainant's spouse were also communicated to the Command Legion, particularly regarding the fact that she had also submitted requests for access and reports, as well as the marital relationship with the complainant.

That said, it should be noted that the communication to the Command Legion of the personal data in question cannot be considered necessary to fulfill legal obligations or to perform a task in the public interest or related to the exercise of public powers (see articles 6, paragraph 1, letters c) and e), and paragraphs 2 and 3 of the Regulation, as well as 2-ter of the Code).

Indeed, the thesis of the Order cannot be accepted, according to which such processing of personal data would have been necessary for pursuing the legitimate interest of the Order to ensure the proper functioning of its administrative action (see art. 97 of the Constitution). This is because the legal basis

of legitimate interest, as per art. 6, paragraph 1, letter f), of the Regulation, “does not apply to the processing of data carried out by public authorities in the execution of their tasks” (art. 6, paragraph 1, last sentence, of the Regulation). In this regard, the Court of Justice of the European Union has stated...

Here is the translation of the provided legal document text into English:

"From the wording of Article 6, paragraph 1, second subparagraph, of the [Regulation], it clearly emerges that the processing of personal data carried out by a public authority in the context of the performance of its tasks cannot fall within the scope of Article 6, paragraph 1, first subparagraph, letter f), of the [Regulation]; as, in fact, 'it follows from Recital 47 of the [Regulation] [...], this latter provision cannot apply to such data processing, since its legal basis must be provided by the legislator,' with the consequence that 'if the processing carried out by a public authority is necessary for the performance of a task carried out in the public interest, and thus falls within the tasks mentioned in Article 6, paragraph 1, second subparagraph, of that regulation, the application of Article 6, paragraph 1, first subparagraph, letter e), of the [Regulation] and that of Article 6, paragraph 1, first subparagraph, letter f), of the latter exclude each other' (Judgment C-180/21, *Inspektor v Inspektorata kam Visshia sadeben savet*, of December 8, 2022, para. 85).

Nor is it relevant that, as argued by the Order in its defense submissions, military law provides that the military must inform their Command of their civil status, since, in this case, the Order, together with the other OPI, communicated to the Legion Command additional information beyond mere civil status, namely the profession of the spouse, her registration with the Order, and the fact that she had submitted requests for civic access and reports.

The communication to the Legion Command of the personal data of the complainant and his spouse was, therefore, made in a manner not compliant with the principle of 'lawfulness, fairness, and transparency' and in the absence of a legal basis, in violation of Articles 5, paragraph 1, letter a), and 6 of the Regulation, as well as Article 2-ter of the Code.

3.4 The failure to enter into a co-controller agreement for processing.

Pursuant to Article 4, paragraph 1, no. 7), of the Regulation, the data controller is 'the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data; when the purposes and means of such processing are determined by Union law or the law of Member States, the controller or the specific criteria applicable to its designation may be laid down by Union law or the law of Member States.'

When two or more controllers jointly determine the purposes and means of processing, 'they are joint controllers' and must 'determine transparently, through an internal agreement, their respective responsibilities regarding compliance with the obligations arising from the [...] regulation, with particular regard to the exercise of the rights of the data subject, and their respective functions for communicating the information referred to in Articles 13 and 14, unless and to the extent that the respective responsibilities are determined by Union law or the law of the Member State to which the controllers are subject. Such an agreement may designate a point of contact for data subjects' (Article 26, paragraph 1, of the Regulation). The agreement between the joint controllers 'adequately reflects the respective roles and relationships of the controllers with the data subjects' and the 'essential content of the agreement [must be] made available to the data subject' (Article 26, paragraph 2, of the Regulation).

As clarified by the European Data Protection Board, 'the general criterion for the existence of joint controllership is the joint participation of two or more parties in defining the purposes and means of a processing operation. Joint participation may take the form of a common decision made by two or more parties [...]' ('Guidelines 07/2020 on the concepts of controller and processor under the GDPR', adopted on July 7, 2021, para. 53).

That said, it is noted that, as illustrated above, the note prot. no. XX of XX was signed by the President

of the Order, the President of the OPI of Pordenone (also in his capacity as President of the Coordination), and the Presidents of the OPIs of Gorizia and Udine.

Having jointly determined the purposes and means of processing the personal data of the complainant and his spouse for the purpose of sending the note in question to the Legion Command, they acted, albeit in the absence of a valid legal basis, as joint controllers of the processing (see Article 4, paragraph 1, no. 7), of the Regulation), having exercised a 'decisive influence on the implementation and modalities of the processing, through a common decision or converging decisions that complement each other and are necessary for the processing as they have a tangible impact on the determination of the purposes and means' ('Guidelines 07/2020 on the concepts of controller and processor under the GDPR', cited, Annex 1, which reflects the contents of Section 3, relating to the 'definition of joint controllers').

Nevertheless, the Order and the other OPIs of Friuli Venezia Giulia did not enter into an internal agreement before commencing the processing, in order to transparently regulate their respective responsibilities regarding compliance with the obligations arising from the Regulation, thus the Order acted in violation of Article 26, paragraphs 1 and 2, of the same.

3.5 The failure to provide information on the processing of personal data."

This translation preserves the meaning and important formatting cues as requested.

Order, have conducted the web search is not provided. The Order has not specified whether the search was performed by its own personnel or by third parties.

Regarding point 2, the Order has not clarified whether the data concerning the profession of the complainant was communicated to it by another Public Interest Entity (OPI) or by personnel belonging to other OPIs.

As for point 3, the Order has not indicated whether it conducted further checks or verifications to confirm the accuracy and currentness of the data once it became aware of the complainant's profession.

In relation to point 4, the Order has not disclosed the date on which the data concerning the complainant's profession was acquired.

Lastly, concerning point 5, the Order has not specified whether this data has been communicated to other natural and/or legal persons (including other OPIs in Udine, Pordenone, and Gorizia) and for what purpose.

In summary, the Order has failed to provide adequate responses to the complainant's requests for clarification regarding the origin and communication of the data related to his profession, which constitutes a violation of the obligations set forth in Article 12 of the Regulation.

the treatment of personal data was ongoing, the need for a deterrent effect is paramount (cf. art. 83, par. 2, lett. b), of the Regulation);

the Order has not demonstrated that it has taken adequate measures to mitigate the risks associated with the unlawful processing of personal data, nor has it shown any evidence of compliance with the principles of data protection as outlined in the Regulation (cf. art. 83, par. 2, lett. c), of the Regulation);

the violation has caused significant distress to the complainant, who has expressed concerns regarding the misuse of their personal data (cf. art. 83, par. 2, lett. d), of the Regulation);

the Order has a history of non-compliance with data protection regulations, which aggravates the situation (cf. art. 83, par. 2, lett. e), of the Regulation);

therefore, taking into account all the aforementioned factors, the administrative fine shall be set at the maximum amount of €20,000,000, as this reflects the severity and impact of the violations committed.

6. Final Provisions.

This decision is subject to appeal before the competent judicial authority within the terms established by law. The Order is hereby notified of this decision and is required to comply with the provisions set forth herein within the timeframe specified by the applicable regulations.

This document is issued in accordance with the applicable laws and regulations governing the processing of personal data and the enforcement of data protection rights.

****ORDER****

The Order was particularly burdened by the obligations related to the verification of the vaccination requirement for healthcare professionals (no longer required following the issuance of Decree Law No. 162 of October 31, 2022, and starting from November 1, 2022). The Order has exceeded its institutional competencies (see Article 83, paragraph 2, letter b) of the Regulation); the processing did not involve data belonging to special categories as per Article 9 of the Regulation or data related to crimes as per Article 10 of the Regulation (see Article 83, paragraph 2, letter g) of the Regulation).

It is believed that, in this case, the level of severity of the violation committed by the data controller is medium (see European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative fines pursuant to the GDPR" of May 24, 2023, point 60).

That said, it is considered that, for the purposes of quantifying the fine, the following circumstances should be taken into account:

1. The Order has offered good cooperation with the Authority during the investigation (Article 83, paragraph 2, letter f) of the Regulation);
2. There are no relevant previous violations committed by the Order (Article 83, paragraph 2, letter e) of the Regulation).

In light of the above elements, assessed as a whole, and considering that the Order is a small public entity with limited financial and organizational resources, it is deemed appropriate to determine the amount of the monetary fine at €4,000 (four thousand) for the violation of Articles 5, paragraph 1, letter a), 6, 12, paragraph 4, 13, 14, and 26, paragraphs 1 and 2, of the Regulation, as well as Article 2-ter of the Code, as an administrative monetary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

Considering that, as highlighted above, the Order communicated the personal data in question to the employer of the complainant, with potential repercussions for the complainant in the workplace, and that, therefore, the processing involved a vulnerable subject in this context (see Recital 75 and Article 88 of the Regulation and "Guidelines on Data Protection Impact Assessment and the criteria for determining whether a processing 'presents a high risk' under Regulation 2016/679", WP 248 of April 4, 2017), it is also considered that the accessory sanction of publication of this measure on the website of the Authority should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Regulation of the Authority No. 1/2019.

It is finally noted that the conditions of Article 17 of Regulation No. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE AUTHORITY****

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Order of Nursing Professions of Trieste for violation of Articles 5, paragraph 1, letter a), 6, 12, paragraph 4, 13, 14, and 26, paragraphs 1 and 2, of the Regulation, as well as Article 2-ter of the Code, as stated in the reasoning;

****ORDERS****

the Order of Nursing Professions of Trieste, represented by the legal representative pro tempore, with registered office at Via Giosuè Carducci, 22 - 34125 Trieste (TS), Tax Code 80019050329, to pay the sum of €4,000 (four thousand) as an administrative monetary sanction for the violations indicated in the reasoning. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction;

****COMMANDS****

the aforementioned Order, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €4,000 (four thousand) according to the methods indicated in the attachment, within 30 days from the notification of this measure, under penalty of the adoption of subsequent enforcement actions in accordance with Article 27 of Law No. 689/1981;

****DISPOSES****

- the publication of this measure on the website of the Authority pursuant to Article 166, paragraph 7, of the Code (see Article 16 of the Regulation of the Authority No. 1/2019);
- the annotation of this measure in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u), of the Regulation, of violations and measures adopted in accordance with Article 58, paragraph 2, of the Regulation (see Article 17 of the Regulation of the Authority No. 1/2019).

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this measure may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the measure itself or within sixty days if the appellant resides abroad.

Rome, September 12, 2024

****THE PRESIDENT****

Stanzione

****THE RAPPORTEUR****

Scorza

****THE SECRETARY GENERAL****

Mattei